

Theme 3: Negotiated Constitutional “Revolution”





Recap



- We looked at the liberation movement and its impact on the end of Apartheid
- We looked at the early 1990s and the start towards the transition to democracy
- We started looking at CODESA and the start of the negotiations



Pop Quiz



1)

What is the international response to the heightened violence and oppression of the apartheid government



Pop Quiz



1)

What is Constitutional Supremacy





CODESA: I: Central disagreement (1)

- One of the major issues facing CODESA **was legitimacy**.
- The negotiators had not been elected by free and verifiable elections, so they lacked the democratic mandate to write the constitution
- They required a properly elected body for the drafting of any final constitution



CODESA I : Central disagreement (2)



- There was a major dispute which concerned how decisions would be made in the new constitutional order
- **The apartheid government wanted**
 - Power-sharing agreements
 - Strong minority protections
 - Supermajority requirements for constitutional decisions
 - Gave them almost a veto power over decisions of majority
- **The ANC argued for**
 - Majority rule based on a democratic election
 - A constitution drafted by an elected body
 - Equal political participation for all citizens
- **These disagreements led to a breakdown in negotiations**

Two stage Transition Solution

The negotiators devised a **two-stage transition solution**:

- **Stage 1:** Unelected negotiating parties draft and adopt the IC; an interim government and the IC would govern the country after the first election (NB 34 principles)
- **Stage 2:** A democratically **elected Constitutional Assembly** drafts the Final Constitution after the election.
- **CODESA I talks, nevertheless stalled**



CODESA II:

- Second round of negotiation in 1992 – failed
 - Parties could not agree on:
 - Voting thresholds for constitutional decisions
 - Structure of transitional government
 - As a result, **negotiations temporarily collapsed** mid 1992
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Violence and Crisis During CODESA Negotiations

- Early 1990s were not a peaceful transition
- The negotiation process occurred alongside significant political violence
- Many communities experience
 - Township violence
 - Political assassinations (think Chris Hani)
 - Conflict between political organisations (think Inkatha Freedom Party)
 - Security force involvement in destabilisation (Boipatong Massacre)
- Violence created deep mistrust between the negotiating parties halting negotiations



Boipatong Massacre 1992



- **17 June 1992**
 - More than 40 residents of Boipatong township were killed
 - The attack was linked to a hostel dweller aligned with Inkatha Freedom Party
 - Allegations emerged that the Apartheid security forces had been involved
- The massacre shocked the country and led ANC to **withdraw from negotiations**
- Stripped the NP of its remaining legitimacy
- Boipatong did not end the possibility of negotiation – it clarified for both sides



Multiparty Negotiating Forum



- Successor to the CODESA between 1993 and 1994
- 26 political parties and groups negotiated the transition
- Firmly established **the two stage transitional** government
- Set date for first democratic election **(April 27 1994)**
- Despite the political violence, the negotiations of Roelf Meyer (NP) and Cyril Ramaphosa (ANC) – resulted in the successful **finalisation of the interim constitution** – Adopted 18 Nov 1993

Interim Constitution



The Interim Constitution

Origins and Process

- Negotiations began during CODESA
- Finalised by unelected MPNF **BEFORE** the first democratic election
- MFNF adopted interim Constitution late 1993
- Became immediately binding after **27 April 1994** (democratic election)
- It was adopted in terms of the 1983 Constitution
 - Can we see why constitutional history is important here?

The Interim Constitution

Key Features

- Established an **interim government of national unity** – both the ANC and the NP would be represented in the Executive
- Provided a coalition government among major political parties for a minimum of five years (up to 1999)
- Provided for two Deputy Presidents – one from ANC and one from NP
- Contained a Bill of Rights protecting basic human rights

The Interim Constitution

Key Features

- Required the Final Constitution to be certified by a newly created Constitutional Court
- Contained 34 **Constitutional Principles** and provisions to regulate the adoption of the final constitution

Constitutional Court and the Certification

- Because the apartheid judiciary was thoroughly discredited, the IC created an **entirely new Constitutional Court**
- The democratically elected president appointed the first head of court in Consultation with the current **chief justice**
- The president then appointed a further 4 judges in consultation with the cabinet and the Chief Justice
- The remaining 6 judges were appointed from a list of names forwarded by the JSC
- At least one judge (Albie Sachs) has been a member of the ANC constitutional committee
- The court's certification would be final and binding – no other court could thus pronounce on the validity of the constitutional text

Provided explicitly for the two stage transition

The IC was central to a programmed **two-stage transition**:

- **Stage 1:** Unelected negotiating parties draft and adopt the IC; It governs the country after the first election
- **Stage 2:** A democratically **elected Constitutional Assembly** drafts the Final Constitution after the election

Rules for Drafting the Final Constitution

The IC set out the rules and process for the drafting of the FC

- Section 68(1): The National Assembly and Senate sitting jointly would form the **Constitutional Assembly**
- The Assembly had to adopt the constitutional text **within two years** of the first sitting of the National Assembly
- Required support of 2/3rds majority of all Constitutional Assembly members
- Section 71(2): The new text would have no force or effect unless **the Constitutional Court certified** it complied with the **34 Constitutional Principles** held within
- If a draft failed to get 2/3rds support but gained majority support, it would become the constitution if backed by 60% of voters in a referendum (this option was not used)

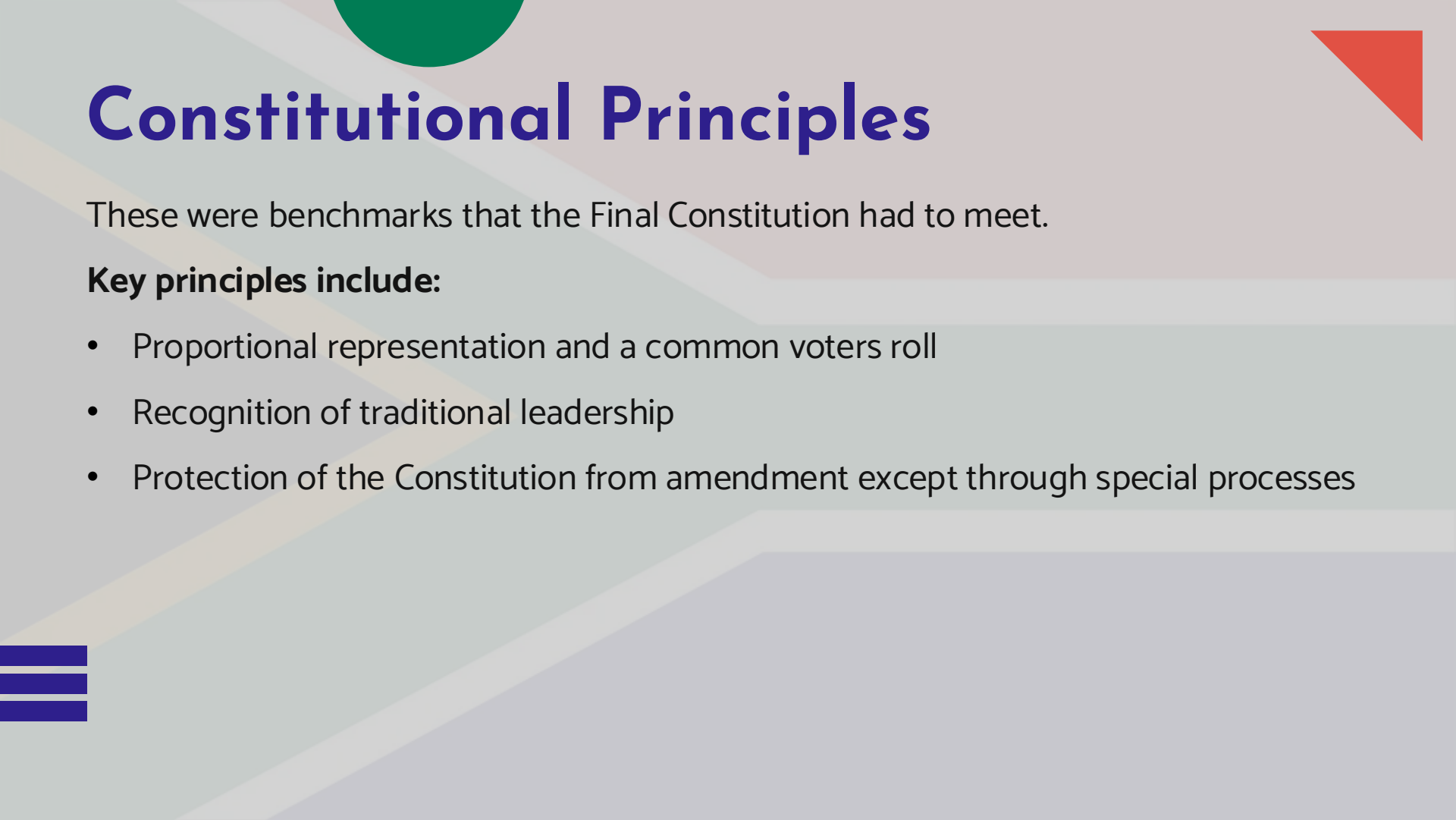


Constitutional Principles

These were benchmarks that the Final Constitution had to meet. Found in Schedule 4 of IC

Key principles include:

- Constitutional democracy based on the **supremacy of the constitution** protected by an independent judiciary
- **Universal adult suffrage** and regular elections
- **Separations of powers / checks and balances** between branches of government
- A Bill of Rights that is Judicable, protecting fundamental rights and civil liberties
- One sovereign state, at national, provincial and local levels (Multi-sphere government)



Constitutional Principles

These were benchmarks that the Final Constitution had to meet.

Key principles include:

- Proportional representation and a common voters roll
- Recognition of traditional leadership
- Protection of the Constitution from amendment except through special processes